		settlement and requesting that the trial court retain jurisdiction under section 664.6, or a stipulation to a judgment of dismissal that expressly provides that the court retains jurisdiction to enforce the settlement agreement under section 664.6. The process need not be complex, but the process must be followed. (Mesa RHF Partners, L.P. v. City of Los Angeles, 33 Cal. App. 5th 913, 918, 245 Cal. Rptr. 3d 512, 515–516 (2d Dist. 2019))" § 23:76. Effect of party's dismissal following settlement, Cal. Civ. Ctrm. Hbook. & Desktop Ref. § 23:76 (2023 ed.)
11	**SESS, LLC vs. JG Companies, Inc. 2023-01336443**	**Plaintiff SESS, LLC** Motion to Expunge Mechanics Lien *****OFF CALENDAR*****
12	**The Surface Pros vs. Kenvys Enterprises 01CC01440**	**Judgment Creditor Judgment Recovery Assistance, LLC** Motion for an Order Establishing 3rd Party Liability Against 3rd Party Obligor, Midway Law Firm APC And/Or Marc Steven Applebaum Judgment Creditor Recovery Assistance, LLC's motion pursuant to Code Civ. Proc. §701.020 for order establishing the liability of third parties Midway Law Firm and Marc Applbaum in the amount of $7,500 for failure to comply with third party levy is granted. Judgment Creditor is awarded attorneys' fees of $2,975. **Basic Law regarding Liability of Third Party Served with Levy** When service is made on a third person, the levying officer (or registered process server) will request the person to either deliver the property or pay the debt levied upon or to provide a

		“garnishee's memorandum” stating reasons for not doing so. This memorandum must be mailed or delivered to the levying officer *within 10 days* after the request. Code Civ. Proc. § 701.030(a). The memorandum must be provided regardless of whether the levy itself is effective (e.g., where the property levied upon is the subject of a pending action or proceeding). Code Civ. Proc. § 701.030(a). There is no duty to provide a garnishee's memorandum if the third person (garnishee) has *fully complied* with the duty to pay or turn over the property levied upon—i.e., where all property described in the notice of levy has been delivered, and all amounts owed to the judgment debtor at the time of levy have been paid, to the levying officer. Code Civ. Proc. § 701.030(f). After entry of a money judgment, the judgment creditor may obtain a writ of execution requiring the levying officer to enforce the judgment. (§ 699.510, subd. (a); *Vineyard v. Sisson* (1990) 223 Cal.App.3d 931, 939, 272 Cal.Rptr. 914.) If property subject to levy is in a third party's possession, the levying officer serves a copy of the writ of execution and notice of levy on that person, who may not refuse to comply absent a showing of good cause. (§§ 700.040, subd. (a), 701.010.) A third party's failure to deliver property without good cause renders it directly liable to the judgment creditor for the lesser of the judgment debtor's interest in the property or debt, and the amount

		required to satisfy the money judgment. (§ 701.020, subd. (a).) . . . *Wanke, Industrial, Commercial, Residential, Inc. v. AV Builder Corp.* (2020) 45 Cal.App.5th 466, 473. In the absence of a showing of "good cause", a third person who fails to comply with the turnover and pay duties becomes *personally liable* to the judgment creditor. The creditor may file a motion under Code Civ. Proc. § 701.020 to enforce this liability. *See National Fin'l Lending, LLC v. Sup.Ct. (Brewer Corp.)* (2013) 222 Cal.App.4th 262, 272 (finding creditor's § 701.020 motion to impose liability on third party for failure to honor notice of levy was incident to underlying action and not separate proceeding that would support CCP § 170.6 peremptory challenge]). If a third person is required by this article to deliver property to the levying officer or to make payments to the levying officer and the third person fails or refuses without good cause to do so, the third person is liable to the judgment creditor for whichever of the following is the lesser amount: (1) The value of the judgment debtor's interest in the property or the amount of the payments required to be made. (2) The amount required to satisfy the judgment pursuant to which the levy is made. Code Civ. Proc. § 701.020(a).

		The third person's liability to the judgment creditor continues until the property or debt levied upon is delivered or paid to the levying officer; *or* the property is released; *or* the judgment is satisfied or discharged. Code Civ. Proc. § 701.020(b). If liability to the judgment creditor is established, the court hearing the action may, in its discretion, require the third person to pay the costs and reasonable attorney fees incurred by the judgment creditor in the action. Code Civ. Proc. § 701.020(c). **Application** Judgment Creditor has presented a proof of service by the San Diego Sheriff's authorized agent attesting to service at the address shown on Third Parties' opposition. [Brady Decl. (ROA #272), Ex. A.] "It is presumed that official duty has been regularly performed." Evid. Code § 664. Further, "[i]t has been held that the filing of a proof of service creates a rebuttable presumption that the service was proper." *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441. "The return of a registered process server 'establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.' [Citation.]" *Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 940.) "[A] declaration of non-service *if credited by the trial court* can rebut the presumption of proper service…" *Id*., at p. 941 (emphasis in original [court declined to credit denial of service, expressly finding declaration to be "unpersuasive"].) The court finds Applbaum's declaration that Third Parties were not "properly" served with the writ

		unpersuasive and finds that Judgment Creditor has established service of the writ. Similarly, the court finds the denial of Judgment Creditor's attempts to follow up on the writ, and denial of receipt of a federal express package with counsel's letter, does not persuasively rebut Judgment Creditor's showing. [*See* Compton Decl. (ROA #272), ¶¶ 3-9 and Exs. F-H.] Judgment Creditor has thus established that it served a notice of levy on Marc Applbaum and Midway Law Firm for money belonging to Judgment Creditor on 11/17/21 and at the time Midway had $7,500 in funds belonging to Judgment Debtor in trust, which it did not turnover but instead returned to Judgment Debtor on 1/18/22. [Brady Decl. (ROA #272), ¶¶12-13, 15, 17-22 and Exs. A – E.] Indeed, Third Parties acknowledge the transfer. [*See* Opp. (ROA #306) at 2:7-9.] Third Parties rely on their prior argument that the judgment and assignment of it are void, but these arguments were previously rejected by the court. [ROA ##66, 94, 247.] In short, Marc Applbaum and Midway Law Firm have not disputed Judgment Creditor's showing or made any showing of good cause for failing to turn over the $7,500 upon levy. They are thus liable for that amount. Code Civ. Proc. §701.020(a). Judgment Creditor seeks attorneys' fees in the amount of $2,975. [*See* Compton Decl., ¶ 10.] Counsel's hourly rate of $425 is reasonable. So is the 7 hours of attorney time he declares was spent on this matter. [*Id.*]